

HOUSE No. 4591

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, October 9, 2025.

The committee on Environment and Natural Resources, to whom was referred the joint petition (accompanied by bill, House, No. 1053) of Dawne Shand, Bruce E. Tarr and Francisco E. Paulino for legislation to create a Merrimack River Collaborative to monitor, improve, and restore water quality, reports recommending that the accompanying bill (House, No. 4591) ought to pass.

For the committee,

CHRISTINE P. BARBER.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to create a Merrimack River Collaborative.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. There shall be a Merrimack River Collaborative to serve as a coordinating
2 entity to advance meaningful progress to improve water quality in the Merrimack River to
3 support biodiversity, to halt and reverse the loss of species and habitats, to restore natural
4 systems, to support climate resilience, ecological health, and a sustainable future, and to work to
5 make the river swimmable, drinkable, fishable and de-listed from the Commonwealth's list of
6 impaired waterbodies.

7 The geographic scope of the Collaborative shall initially be focused on the mainstem of
8 the river, including wetlands and estuary, from the southern New Hampshire border to the mouth
9 of the river. In future years, the Collaborative may consider expanding to include the tributaries
10 of the Merrimack River in Massachusetts. The Collaborative may support and serve as a liaison
11 for a similar entity in New Hampshire and develop an interstate compact between New
12 Hampshire and the Commonwealth.

13 The Collaborative shall employ methods and strategies to advance the following goals:

(a) Convene Collaborative members and associated communities and act as an incubator for emerging collaborative projects

(b) Advance the standardization and increased availability of water quality monitoring data along the river

(c) Monitor and disseminate information regarding known and emerging pollutants

(d) Prioritize Implementation projects to improve water quality

(e) Identify and support legislation, resources, grants and other funding opportunities to improve water quality and the overall health of the Merrimack River

The Collaborative shall be managed by an Executive Committee comprised of the Executive Directors, or their designee, of the following organizations: the Merrimack Valley Planning Commission, the Northern Middlesex Council of Governments and the Merrimack River Watershed Council. The Collaborative shall be empowered to create special working groups as needed. The Executive Committee shall make all final decisions for the Collaborative.

In addition to the members of the Executive Committee, the Collaborative shall consist of members, or their designees, that may include, but not be limited to:

(a) City or town representation from communities that border the mainstem of the river:

1) City of Amesbury, Mayor

2) Town of Andover, Town Manager

3) Town of Chelmsford, Town Manager

- 34 4) Town of Dracut, Town Manager
- 35 5) Town of Groveland, Town Administrator
- 36 6) City of Haverhill, Mayor
- 37 7) City of Lawrence, Mayor
- 38 8) City of Lowell, City Manager
- 39 9) Town of Merrimac, Town Administrator
- 40 10) City of Methuen, Mayor
- 41 11) City of Newburyport, Mayor
- 42 12) Town of North Andover, Town Manager
- 43 13) Town of Salisbury, Town Manager
- 44 14) Town of Tewksbury, Town Manager
- 45 15) Town of Tyngsborough, Town Manager
- 46 16) Town of West Newbury, Town Manager
- 47 (b) State legislative offices representing the above listed communities
- 48 (c) The secretaries of the Executive Office of Energy and Environmental Affairs,
- 49 Health and Human Services, and Transportation
- 50 (d) The Executive Director of the Massbays National Estuary Partnership

(e) Directors of non-governmental organizations working in the above listed communities on issues impacting water quality including, but not limited to:

- 1) Andover Village Improvement Society
- 2) The Alliance of Climate and Environmental Stewards
- 3) Essex County Greenbelt Association
- 4) Groundwork Lawrence
- 5) Lowell Parks and Conservation Trust

(f) Presidents of universities in the above listed communities working substantively on issues impacting water quality including, but not limited to:

- 1) University of Massachusetts, Lowell
- 2) Middlesex Community College
- 3) Northern Essex Community College

(g) Managers of drinking water and wastewater systems that draw from or release into the Merrimack River

Appointments to the Collaborative shall be confirmed by the Executive Committee not later than 90 days after the effective date of this act. The chief executive officer of each member organization shall appoint themselves or a representative to serve as a member of the Collaborative.

69 The Collaborative shall not be a funded entity or a recipient of funds. The Collaborative
70 may advocate for the funding of projects that benefit the mission of the Collaborative undertaken
71 by its members. Collaborative members shall not receive compensation from the Collaborative
72 for their services.

73 The Collaborative may conduct public hearings to receive testimony and collect data. The
74 hearings shall be held in geographic locations bordering the Merrimack River.

75 The Collaborative shall produce an annual report based on the calendar year. The report
76 shall address accomplishments of the Collaborative and highlight the work of member entities
77 relevant to the goals of the Collaborative. The report shall also outline forthcoming efforts and
78 make recommendations. The Collaborative shall submit the annual report, with any proposed
79 legislation, to the clerks of the Senate and House of Representatives no later than December 31st
80 of each year.

81 The first meeting of the Collaborative shall be no later than 90 days after the effective
82 date of this act.